How do changes to ballot box access after *Shelby County v. Holder* affect minority voter turnout in U.S. presidential elections?

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ABSTRACT

Until the passage of the Voting Rights Act of 1965, strict laws which protected a citizen's right to vote based on race and sex were non-existent. Section 5 of the VRA specifically required states with a history of voter discrimination to undergo approval by the Justice Department to change their electoral systems. However, in the recent decade, *Shelby County v. Holder* (2013) ruled that this was no longer the case, making it easier for states to employ discriminatory voting practices. In the 2016 presidential election, about 39.9% of the voting eligible population did not vote in the election. White turnout increased to 65.3% from 64.1% in 2012, while Black turnout decreased to 59.6% from 66.6% in 2012 and Latino turnout decreased to 47.6% from 48% in 2012. This study aimed to see if voter suppression tactics like increased voter identification laws and proximity to polling place locations after *Shelby County v. Holder* affected Black and Latino voters and turnout differently than White voters. Results show that states with stricter voter ID laws in 2016 negatively affected Latino voter turnout more than White and Black voters. Results also demonstrated that changes to average distance to polling place location from 2012 to 2016 negatively targeted majority Black and Latino populations more than majority White populations.

1 Introduction

Voting Rights Act of 1965 and Shelby County Supreme Court Case

Of all the privileges given to an American citizen, one of the most crucial is the right to vote as it puts leaders in office who will represent them during each political term. Suffrage has been a contested movement since the founding of the United States given the lack of structure in the constitution setting who can and cannot vote, leaving it up to the states to decide. Falling on the racist and patriarchal ideals that founded the United States, change occurred progressively through amendments prohibiting the denial of voting to any citizen. The Voting Rights Act of 1965 passed through congress to remedy such issues as it outlawed discrimination against potential voters based on race and sex. Yet, this was not enough as minorities were still deterred from voting in various manners through state manipulation of voting registration processes, such as voter ID laws, voter caging, voter purging, and more (Clayton 2015). Section 5 of the Voting Rights Act of 1965 required states with a history of voter discrimination to get any changes to their electoral systems approved by the Justice Department, however, following the ruling in *Shelby County v. Holder* this rule was no longer able to stand (Justice 2017). Before the overturn of the Voting Rights Act of 1965's Section 5 pertaining to these states, it was mandated for these states to prove to a three-judge court in Washington D.C. or the attorney general that proposed voting changes or laws taking into effect regarding voting were not discriminatory based on someone's race, language proficiency, or minority status. If this were not met, the change would not be allowed to happen, however, following the 2013 court decision, this requirement was no longer precedent (Yeomans 2014). Section 5 of the act was determined to be obsolete and antiquated as the section was held upon data from decades prior and implemented to eradicate

practices no longer in place as well as the trend that these states no longer performed as low in minority voter turnout compared to states not under its scope.

Thus, brings the contemporary question regarding the effect of changes to voter registration and other electoral systems on minority voter turnout, which has already been historically minimized in VRA states including Alabama, Alaska, Arizona, Georgia, Louisiana, Mississippi, South Carolina, Texas, and Virginia. The Brennan Center reports that these states have since then enacted various laws and measures restricting voting following the erasure of the mandated preclearance thanks to *Shelby County v Holder*. Literature shows that following this case, states such as Mississippi, Alabama, and Florida have already begun extending their power to reinforce voting requirements and make them tougher through means of voter purging, reduction in same-day voter registration and early voting, as well as implemented harsher ID requirements (Seidenberg 2014). Others have also closed hundreds of polling places across the United States and placed limitations on who can provide assistance at polling places (Lockhart 2019). Since the *Shelby County v Holder,* in states previously covered by Section 5 of the VRA, about 868 polling place locations were closed going into the 2016 presidential elections, which accounted for about 16% of total locations (*The Leadership Conference on Civil and Human Rights* 2016). Specific states that this study looks at include Louisiana, Mississippi, South Carolina, and Virginia, all of which are states formerly under the jurisdiction of Section 5 of the Voting Rights Act of 1965.

Voter Turnout Discrepancies by Race in 2016

In the 2016 presidential election, about 39.9% of the voting eligible population did not vote in the election. Of the estimated 231 million eligible voters, only about 139 million turned out to vote, leaving a staggering 90 million Americans without a casted vote (McDonald 2018).

One could imply that if these 90 million Americans had casted their ballot, the election outcome could have been different. Far more interestingly, there exists a gap within the proportion of eligible voters who do turn out to vote, which opens discussion to the reasons behind these disparities. Data shows that in 2016, voting rates drastically varied by race as White Americans turn out at larger numbers than do their minority counterparts. White turnout increased to 65.3% from 64.1% in 2012, while Black turnout decreased to 59.6% after having held a record high of 66.6% in 2012. Additionally, Latino turnout decreased from 48% in 2012 to 47.6% in 2016; although not a substantial regression, it should be noted that this 0.4% decrease adheres to a loss of thousands of eligible Latino voters who did not turn out. Comparing White turnout to that of Black and Latino turnout, White turnout in 2016 was 5.7% higher than Black turnout and 17.7% higher than Latino turnout (*US Census Bureau* 2017, *US Census Bureau* 2019). This disproportion in turnout demonstrates that minority races are severely underrepresented in presidential elections.

As the US becomes more diverse in its make-up, minority votes are crucial regarding representation in elections, specifically in presidential elections. However, they go largely underrepresented and a major reason for this deals with the lack in voter turnout with respect to these groups. Thus, the big-ticket issue that emerges is in relation to the reasons behind the lack of minority voter turnout. The Voting Rights Act of 1965, sought to debunk and overcome legal barriers set in place at state and local levels that deterred people of color, primarily Black citizens, from casting a vote in elections (*History*). Yet, there seem to still exist barriers to the ballot box that disproportionately affect Black and Latino minority groups from exercising their right to vote in presidential elections as can be seen with the disparate proportions of Black and Latino voters who do turn out.

Why do these groups turn out at rates much lower than their White counterparts? What exactly determines if individuals will turn out and how does this affect various groups disproportionately? Do factors that pose deterrents and/or promoters for minority voter turnout in presidential elections exist? If so, what can be done to minimize these deterrent factors and maximize promotive factors which will ensure increases in minority turnout and thus minority representation? These are all questions I will attempt to demystify by garnering information that adheres to voter turnout affected by distance to polling places and voter identification laws in four states formerly encompassed under Section 5 of the Voting Rights Act of 1965 and apply it to Black and Latino groups as my research develops. Accordingly, or this study, we shall focus on the costs of voting associated with ballot box access and voter ID laws.

2 Literature Review

Costs of Voting

In order to understand the lack of minority voter turnout or even voter turnout in general, one must look at the fundamental predictors in extant literature to build a case for potential validity of said predictors. The general equation that predicts whether someone will vote is $V = pB - C + D$, where V is the probability that the voter will vote, p is probability of vote "mattering", B is the benefit of voting, C is costs of voting, D is the voter's feeling of citizen's duty to turn out (Riker and Ordeshook 1968). Focusing on the costs of voting, those that have been researched include registering to vote, residency requirements, poll taxes, felon classification, voter identification laws, and access to the ballot box (Hershey 2009). This work will follow suit by focusing primarily on literature pertaining to access to the ballot box.

Defining Ballot Box Access

Ballot box access will be defined as the ability to cast a ballot through the accessibility and availability of polling places based on people's geographical location as well as the laws in place that require eligible voters to present a valid voter identification at the polls. Both of these schools affect the probability of an eligible voter from turning out to vote as distance to polling places and voter identification requirements deter from gaining access to the ballot box (Blais 2000, Yang and Gaines 2008, Yang 2019).

Voter Identification

Voter Identification has become an issue as political elites attempt to suppress minority votes. Voter fraud has been cited as the motivator for voter identification laws, but this concept covers for the efforts to suppress minority voters. Additional literature also demonstrates that Voter ID laws may produce more fraud than overcome (Gilbert 2015). However, voter identification laws have been implemented throughout a majority of states. According to the National Conference of State Legislatures, 36 states have enacted laws that require some form of official identification when voting in person. Other states do not formally request such strict identification methods when voters are at the polls, but still impose methods that require voters to verify their identity, falling in line with voter identification law tactics seeking to reduce potential voter fraud (Overton 2007). These identification requirements vary by state, some issuing stricter requirements of photo identification at the polls to others issuing less strict requirements that accept any documentation that may prove a person's identity (NCSL). These voter identification requirements saw a greater increase shortly after the passage of the Help America Vote Act (HAVA) of 2002, which allowed and encouraged states to further impose several different types of voter identification law requirements. Some of these requirements

included providing identification be it student ID, military ID, a driver's license, voter registration, or other varying by state where some require photo-identification while others do not. Other requirements are having to produce a birth date, state or sign one's name, or proving prior signatures from election registration databases at the polls (Hershey 2009).

In their article Alvarez et al. (2007) suggest that Voter ID laws appear to have some form of effects on turnout while Hopkins (2018) presents the argument regarding the tendency of voter ID laws to deter voters from turning out which states "if voter ID laws reduce turnout, they are likely to do so both by preventing some people who show up at the polls from voting and by deterring others from showing up in the first place." Harmoniously, Fraga and Miller (2018) contribute to Voter ID law literature, by finding evidence supporting the claim that voter ID laws negatively affect voter turnout and by identifying who is disproportionately disenfranchised by said laws. Moreover, it is deduced that groups who were more disproportionately affected in turnout, were Black and Latino. Data suggest that the number of legitimate voters who would not bring voter identification to a polling place far surpasses the number of fraud voters, so voter identification would lead to inaccurate representation and lower turnout, yet these requirements are set in place. Although these studies attempted to investigate one connection of voter turnout deterrents/motivators, SES and Voter ID laws, there lacks additional research that applies this to more data sets, as well as the interaction with distance to polling places.

Another facet that dictates the ability of eligible voters to turnout and cast their ballots is the implementation of provisional ballots. Provisional ballots are ballots that "ensure that voters are not excluded from the voting process due to an administrative error. They provide a fail-safe mechanism for voters who arrive at the polls on Election Day and whose eligibility to vote is uncertain" (*NCSL*). They exist to ensure no voter is denied their right to vote due to lack of proof

of identification, hence they will be required to cast a provisional ballot. Depending on the voter identification strictness of the state, further actions must be taken to prove one's identity to have their provisional ballot hold (*California Secretary of State, NCSL*). For many who lack proper voter identification, these federally mandated provisions determine their ability to vote. Literature indicates that race, age, and education are key predictors in determining the electoral geography of provisional ballots and that those benefiting from provisional ballots tend to be minority communities of lower education and Non-White origin, while those who benefitted least from being able to cast provisional ballots were well-educated higher income and older White individuals (Hershey 2009). However, literature focuses on the geographical aspect of provisional ballots and who casts them but lacks in how voter turnout is affected when voter identification strictness, retroactive voter identification requirements, and polling place location are also in effect.

Polling Places and Distance

Extant literature focusing on minority turnout and polling places has mainly focused on the lack of competitive incentive to show up to vote as well as to having more polling places available, too many elections that seem identical and frequent, a decline in government trust, the costs associated with voting, and change in demographics (Brians and Grofman 2001; Barreto et al. 2009). However, literature is lacking in terms of how minority turnout is affected based on access to the polls through the lens of distance to polling places. Barreto et al. attempted to answer if all citizens have an equal access to the ballot box through a measure of polling place quality, which based on their findings suggested that the quality of polling place varies across neighborhoods and influences voter turnout. Gordon and Rosenberg (2015) restate this as they claim that minority communities suffer from lower quality polling places through access to

machines as they tend to have more outdated voting technology than White communities. Yet, both studies failed to consider proximity of polling places and variations in proximity based on precinct population combined with the racial/ethnic status of community members and how this affects voter turnout. Other data suggests that changing polling place locations extensively on turnout and electoral consequences (Brady and McNulty 2011). So, literature points to precincts not being created equally as well as changes in location but does little to understand the role distance and abundance of polling places have on voter turnout and how it may affect turnout differently by race.

Moreover, other underlying factors that affect voter turnout through ballot box access is the costs. Voting although technically a free right, comes with costs of time and energy. Merrifield (1993) breaks down these costs into two categories, institutional and individual costs, but how do these categories intertwine with ballot box access? Costs related to ballot box access in general include garnering sufficient knowledge on where to vote, registering, having the correct documentation and additional voting requirements, and so on. Costs by means of polling place distance include time spent voting, heading to their nearest precinct, and overall availability of polling places. Less polling places and further distances should be considered when examining deterrent to voter turnout in a minority perspective as increases in time costs for potential voters reduces turnout (Blais 2000, Blais 2006).

Current literature focusing on polling place distance finds that distance to suburban voters affects turnout negatively, especially for those 2-5 miles away, relatively focusing more on suburban turnout rather than specific differences in turnout by race (Gimpel and Schuknecht 2003; Dyck and Gimpel 2005). Additionally, Cantoni (2020) studied the effects of distance to polling places using geographic discontinuities where he found that a 0.245-mile increase in

distance to polling places reduces turnout by about 1-3 percent. He also finds the distance to the polling places has partisan consequences, yet those are not fully developed in his article as the study fails to look at the interaction between other ballot box access aspects like voter ID laws and polling place density and their effect on minority voter turnout. As polling places continue to close and distances between polling places and voters increase, such was the case in both Louisiana and Mississippi which closed about 126 and 96 polling place locations from 2012 to 2016 respectively, studying polling place location density is crucial to understand voter turnout deterrents. It is especially important to investigate disparities in voter turnout due to race/ethnicity since VRA safeguards were removed after *Shelby County v Holder*.

3 Methodology

Seeking to decipher the impact this overturn may have had on minority voter turnout as they are no longer under the same protections as they were before *Shelby County v. Holder*, here, ballot box access will be administered as distance to polling places based on communities and their demographics as well as voter identification law strictness. Moreover, voter identification laws were focused on in terms of voter identification law strictness by state and the interactions it may have with race. The study was broken down into two parts, the first focusing on voter identification and the second focusing on proximity to polling place location.

Voter Identification Analysis

2016 Collaborative Multiracial Post-Election Survey (CMPS, 2016)

To conduct this study, I examined the 2016 Collaborative Multiracial Post-Election Survey (CMPS) to analyze the proportions of minority voters who did not vote in 2016 and why. The 2016 CMPS is a qualitative/quantitative data archive that was conducted via the Internet and is one of the few surveys that includes enough respondents to do a cross racial group analysis.

The aim of the survey was to include large samples of Black, Latino, and Asian American constituents with the goal of allowing for comparison and analysis of an individual group or across groups (Barreto et al. 2018). However, for the purposes of this study, the main ethnic/racial groups that were focused on were Black, Latino, and White Americans, the last of which was used as a reference point for comparison regarding voter turnout.

The survey is the first cooperative, 100% user content driven, multi-racial/ethnic/lingual, post-election online survey in the United States. Some features of the 2016 CMPS include: self-funded by academic researchers through the purchase of question content, questions were user-generated from a team of 86 social scientists, from 55 different universities, across 17 academic disciplines, it was available in English, Spanish, Chinese, Korean, and Vietnamese, it consisted of 394 questions and a full adult sample with both registered and un-registered voters (Barreto et al. 2017). Focusing on White, Black, and Latino respondents who voted or did not vote, *Table 1* shows the voters vs. non-voters racial breakdown of the remaining 4,521 observations from the initial 10,145.

Table 1: 2016 CMPS Count of Not Voted vs. Voted by Race

Vote Status	**White Non-Hispanic**		**Black or African American**		**Hispanic or Latino**	
	Count	*Percent*	Count	*Percent*	Count	*Percent*
No, I did Not Vote	32	*4.55%*	172	*8.59%*	161	*8.86%*
Yes, I Voted	671	*95.44%*	1830	*91.40%*	1655	*91.13%*

Voter Identification Classification

To be able to analyze the effect of Voter ID laws on minority populations in the states of Louisiana, Mississippi, South Carolina, and Virginia, a measurement for Voter ID strictness had to be determined. The National Conference of State Legislatures (2020) categorizes Voter ID laws in two ways, the first being the type of ID accepted by states, photo or non-photo, and the second is the options given to voters when they lack the appropriate identification. Based on these two distinctions, this study follows suit and categorizes states into three categories based on their levels of strictness: non-strict, somewhat strict, and strict. These were measured through the two aforementioned NCSL categorizers. States determined as non-strict include those that do not require any additional costs from voters to have their votes legitimized through presenting of acceptable identification to process their provisional ballot. States determined as somewhat strict include those that request identification but are not limited to photo identification only and must still provide proof of acceptable identification after a provisional ballot. States determined as strict include those that require additional costs of voting when lacking appropriate identification through presenting acceptable identification shortly after casting provisional ballots as well as having an initial required photo identification.

Accordingly, focusing on specific former VRA contended states, Figure 1 shows Louisiana and Mississippi were categorized as strict (although Louisiana does not require proof of identification days following the provisional ballot, it does require signature of an affidavit that may be contested as well as date of birth and other information form poll books, so it was categorized as strict) (*Ballot Pedia*; *Louisiana Secretary of State*; *Mississippi Voter ID*; *NCSL*). South Carolina was categorized as somewhat strict as ID is requested but photo is not required, and voters must show identification within delays of election and submission of their provisional

ballots (*Ballot Pedia*; *South Carolina Election Commission*; *NCSL*). Lastly, Virginia was categorized as non-strict as voters are not required to show photo identification when asked for proof of identification and there is no additional cost for voters after election day when lacking acceptable identification and submitting a provisional ballot (*Ballot Pedia*; *NCSL*).

Figure 1: Voter ID State Strictness Table

Post Polls Requirement After NO Voter ID is Presented	**Voter ID Requirement**		
	Photo ID Required	Photo ID encouraged but not required	NO Photo ID Required
Retroactive ID Requirement	Louisiana Mississippi	South Carolina	
NO Retroactive ID Requirement			Virginia
**Retroactive ID Requirement: Voter ID Verification required days following the casting of a provisional ballot*	Strict	Somewhat Strict	Non-Strict
	Voter ID Strictness Level		

Moreover, for the purpose of identifying the relationship between state strictness level, ethnicity, and voter turnout, I categorized all 50 states including the District of Columbia into a similar table as *Figure 1*. This was then translated into R Studio where I used a built-in file named “state.name”, which contains a vector of all fifty state names. As some of the respondents in the CMPS file had Washington DC as their state of residence, I added it to the list of 50 states to have a more accurate representation of voters. Moreover, I attached a column to the state names by manually categorized states as non-strict, somewhat strict, and strict. States I categorized as Non-Strict were assigned a factor of 1, Somewhat Strict states were assigned a 2, and Strict states were assigned a 3 in order to run a logistic regression analysis. Non-strict states

based on the aforementioned criteria included: California, Illinois, Maine, Maryland, Massachusetts, Minnesota, Nebraska, Nevada, New Jersey, New Mexico, New York, North Carolina, Oregon, Pennsylvania, Vermont, Virginia, Wyoming, and Washington DC. Somewhat Strict states included: Alabama, Alaska, Arkansas, Colorado, Connecticut, Delaware, Florida, Hawaii, Idaho, Iowa, Kentucky, Michigan, Missouri, Montana, New Hampshire, Oklahoma, Rhode Island, South Carolina, South Dakota, Texas, Utah, Washington, and West Virginia. Strict States included: Arizona, Georgia, Indiana, Kansas, Louisiana, Mississippi, North Dakota, Ohio, Tennessee, and Wisconsin.

Once all of the states and Washington DC were categorized into one of the three levels of strictness, I merged this dataset with that of the 2016 CMPS dataset. This merged dataset included 10090 observations and 1008 variables from the 2016 CMPS dataset as well as a new state strictness variable. Observations that lacked state of residence were dropped, which explains the decrease form 10144 observations to 10090. Focusing only on white, Black, and Latino respondents, I removed all other racial groups from the dataset. Moreover, as I was only interested in comparing respondents who voted and did not vote, I also removed all survey respondents in the 2016 CMPS who refrained from answering the question of whether they voted or not. This reduced the dataset by a about half, but a sample size of 5986 was still viable for the logistic regression analysis. Treating voter turnout as the response variable, I coded people who voted as a binary 1 and people who did not vote as 0. The final variables I focused on included the response variable of vote status and the predictor variables of state strictness level and race/ethnicity. As such, I was able to run a logistic regression model which determined the association between the predictor variables as well as their interaction on the response variable. From this model, I created a table outlining which predictors were significant in predicting voter

turnout and which were not. Additionally, I created a plot which depicted the overall effect state strictness level and its interaction with race/ethnicity had on voter turnout.

To further expand on the potential effect that voter identification laws and their strictness, as well as its interaction with race/ethnicity, had on voter turnout I aggregated data to the 2016 CMPS dataset. The aggregated data came from Harvard Dataverse, which was added by Hicks et al. in correspondence to their research in voter identification laws. The dataset included 600 observations and 34 variables ranging from state, year, state code, and photo ID requirement to vote to existing voter ID law. I specifically focused on the variables State, Bills Proposed, ID Requirement, and Photo ID Requirement. To be able to merge the data with that of the reduced 2016 CMPS data, I had to manipulate it to what I required. The variable Bills Proposed was separated by year, as in the amount of bills proposed in 2001, 2002, ranging to 2012. I created a new variable which summed the entirety of bills proposed from 2001 to 2012 to act as a variable demonstrating how many bills were proposed in the past decade up to the 2012 presidential election and how that may affect voter turnout. The variables ID Requirement and Photo ID Requirement were binary, as in, if the state had standing ID requirements in 2012 it would be denoted with a 1 or 0 if not and if the state had standing photo ID requirements in 2012 it would be denoted with a 1 or 0 if not. Seeing as ID Requirement and Photo ID Requirement were updated for each election cycle, I only used the year of 2012 as it was the most relevant presidential election year prior to the 2016 election. This would allow me to see the potential effect of having Id requirements or photo ID requirements set in the state on voter turnout based on race. Once these changes were made, I merged the relevant variables to the reduced 2016 CMPS data using state name which left 4489 observations. I then created a second model with

voter turnout as the response variable and Total Bills Proposed, ID Requirement, Photo ID Requirement, race/ethnicity, and their interactions as the predictor variables.

Polling Place Location and Distance Analysis by Race

Case Selection

For this study, I wanted to look at states whose voting history was cased in discriminatory voting practices towards minority voters, so it was decided to narrow down on those that fell under Section 5 of the VRA of 1965. The full list of states that were covered as a whole by Section 5 include Alabama, Alaska, Arizona, Georgia, Louisiana, Mississippi, South Carolina, Texas, and Virginia. Data pertaining to the addresses of polling places in each state was obtained from GitHub, a code hosting platform, which allows users to upload large sums of datasets and work on these projects together to analyze statistics related to said datasets. However, due to the lack of availability of polling place location data, the study was narrowed down to Louisiana, Mississippi, South Carolina, and Virginia. Some states had missing data, lacked a large population, or lacked diversity in its racial demographics. Alabama, Arizona, and Texas were missing from the datasets, while Georgia was missing data from the 2012 presidential election. Additionally, I have gathered other information of varying quality about the state's demographics such as total population by race in each of the four states, educational attainment, household income, and more within state data.

Moreover, I utilized two datasets from each of the four former VRA states Louisiana, Mississippi, South Carolina, and Virginia, which were polling place datasets for both 2012 and 2016, totaling 8 datasets. The 8 datasets selected had varying geographic information ranging from state name, jurisdiction, jurisdiction type, county name, county FIPS code, precinct id, name of polling place center, and address. The datasets lacked in including longitude and latitude

which was necessary for a distance analysis. Not all states included every variable listed, but the most important variables needed were state name, address, and county name to calculate longitude and latitude for each polling place location for 2012 and 2016, which all 8 of the datasets contained.

To prepare the data, I geocoded the 2012 and 2016 polling place locations of all four states using ArcGIS Pro. ArcGIS pro is a desktop GIS (geographic information system) mapping and spatial analytics software. Using ArcGIS Pro, I inputted each of the necessary geographic information provided in the datasets, which included county name, address, and state. Then, I matched them to specific points on a map which outputted longitude and latitude variables. Observations not matched or that were tied between two or more locations, I had to manually input myself. For the matched observations I had to use a mapping application, Google Maps, to pinpoint the location of the observation and compare it to the matched addresses provided in ArcGIS to choose the correct matched address. This processes consisted of inputting observation addresses into Google Maps and locating which matched point lied on the same coordinates as the ArcGIS map tool. For observations that had no matched addresses, I had to use the same mapping application to pinpoint the location of each observation, find it on the ArcGIS mapping tool, and manually add a coordinate dot on the mapping tool of ArcGIS. After having completed this process for each of the 8 datasets, I used ArcGIS to output 8 new datasets which included the longitude and latitude variables for each of the polling place location observations. The total number of observations in each dataset varied based on number of polling places in the state given the year. Louisiana had 4269 observations in 2012 and 3906 in 2016, Mississippi had 1830 in 2012 and 1578 in 2016, South Carolina had 2179 in 2012 and 2235 in 2016, and Virginia had 2418 in 2012 and 2411 in 2016.

Additional to the 8 polling place location datasets, I utilized four 2010 datasets converted from text files containing census block centroids. The specific census block centroid datasets used corresponded to the four states of Louisiana, Mississippi, South Carolina, and Virginia. These datasets were found through the United States Census Bureau. Centers of population as categorized by the US Census Bureau are balancing points that represent the flat surface of each state if weights of identical size were placed on them so that each weight represented the location of one person. For the purpose of this study, the centers of population utilized were by block groups. This would allow for an analysis of mean centers of populations for each census block groups within Louisiana, Mississippi, South Carolina, and Virginia. The text files included the following variables: state Federal Information Processing Series (FIPS) code, county FIPS code, census tract code, census block group code, 2010 Census population for block groups, and latitude and longitude coordinates for block group centroids (center of population for each block group). FIPS codes are geographic identifiers assigned alphabetically based on geography type, such as states and counties. Each state FIPS code is unique to one another as well as county FIPS codes within each state. Census tracts are geographic identifiers for narrower areas like cities and towns which are nested within counties. These variables are crucial for understanding geographic and demographic data within the four former VRA states, as well as analyzing their relationship (*US Census Bureau*).

After having geocoded each of the polling place locations in 2012 and 2016 for the four states of Louisiana, Mississippi, South Carolina, and Virginia, I used R Studio to import the geocoded polling place location data. Data cleaning was then conducted to remove any observations with NA’s or null values which may affect the distance analysis. Furthermore, the polling place data was then converted into shapefiles to allow me to conduct the distance

analysis. I marked the latitude and longitude variables as X and Y coordinates to make it easier to merge at a later step. The next step involved converting latitude and longitude to geometry, which served as a variable of reference for a specific point rather than two separate variables. In order to incorporate a coordinate reference system, I needed to make sure both shapefiles were on (2012 and 2016 observations) were on the same coordinate reference system so they were looking at distance in the same manner. Here I had to include a string of databases of reference systems called Proj4 and using WGS 84/pseudo-Mercator found through ESPG.io, I set the string as the coordinate reference system for both 2012 and 2016 polling place locations. The next step in the data preparation involved converting the list of centroids into shapefiles as well. Again, data cleaning was necessary to remove observations that potentially contained NA's or null values. After having removed observations with missing latitude or longitude variables, it was possible to incorporate the aforementioned coordinate system into these centroid data files and convert them into shapefiles. This exact process was conducted four times for each of the former VRA states.

Once both the polling place location datasets and the centroid datasets were converted into shapefiles, I ran a K-nearest neighbors algorithm using R Studio as well. K-NN is a statistical non-parametric classification method which classifies an observations to its nearest neighbor in distance. For a K-NN algorithm, an x, the starting point, and y, the destination point are necessary to classify each observation. Here, my x starting points were the census block centroids and my y destination points were the polling place locations. The algorithm takes one observation, the census block centroid, and compares it to every observation in the polling place location dataset for the respective state. It calculates the distance from the observed centroid in the census block using its longitude and latitude variables to each of the longitude and latitude

pertaining to the polling place location dataset. Once each of these calculations have been ran, the algorithm matches the observation to the nearest census block centroid and classifies that information to the observation. This is done for every observation in the census block centroid dataset and once completed, the algorithm outputs a distance to the nearest polling place location that was classified as the nearest neighbor for each of the observations. Thus, the output was the distance to the nearest polling place location on the coordinates of each census block centroid. The same process was run for each state census block centroid dataset to their two respective state datasets consisting of polling place locations. This outputted distance in miles for centroids from both the 2012 and 2016 observations in the polling place location datasets, which would allow for a comparison change in average distance for each observation from 2012 to 2016. I then combined both K-NN results into four datasets corresponding to each of the four states. The end result were four datasets that included State FIPS code, County FIPS code, census tracts, block groups, population size, a geometry variable that contained a geographical point using longitude and latitude, distance in miles from centroids to the nearest polling place location in 2012, and distance in miles from centroids to the nearest polling place location in 2016.

The next phase in the distance analysis focused on incorporating census data to the distance in miles data. Social Explorer was used to garner census tract data. Social explorer is a United States demographics information site that provides interactive data maps and reports for areas in the United States based in a variety of variables, ranging from race/ethnicity, household size, household income, and more. It can be used to explore, visualize, and analyze U.S. demographics of selected areas ranging from large nation-wide scales to state, county, block group or other region-specific scales. Demographic information is gathered through a variety of surveys. To conduct the necessary distance analysis, I generated tables for Louisiana,

Mississippi, South Carolina, and Virginia from five-year estimates ranging from 2012 to 2016 of American Community Survey data. I focused on block group information in congruence with the 2010 census block group centroid data and selected useful demographics like race/ethnicity, population size, and median household income. After downloading, the four datasets included variables like State FIPS code, County FIPS code, census tract, total population, median household income, and a myriad of race/ethnicity population variables for each block group.

Once the distances in miles for each observation (centroids) were calculated and added to each of the four distance datasets and the four state U.S. census tract datasets were downloaded, I began merging the datasets by according to state. Using R Studio, I loaded in both the district centroids data and the census block group data from social explorer. To continue conducting a spatial analysis, I had to convert my social explorer data into a shapefile. Here I had to download a shapefile of my census block group data from the U.S. Census Bureau corresponding to 2012 and combine it with my social explorer data to get block group codes and refined geographic identifiers. The next step required me to data wrangle and rename variables from the updated social explorer census tract datasets to make it possible to merge them with the polling place distance datasets. To merge Louisiana, I used block group codes and census tracts as the merging variables which outputted a dataset of 3035 observations containing State FIPS code, County FIPS code, census tract, distance in miles from centroids to the nearest polling place location in 2012, and distance in miles from centroids to the nearest polling place location in 2016, total population, median household income, and a myriad of race/ethnicity population variables for each block group. To merge the respective Mississippi, South Carolina, and Virginia datasets, I used block group codes, census tracts, and county FIPS as the merging variables which outputted three datasets of 1870, 2595, and 1073 observations, respectively. Each dataset contained State

FIPS code, County FIPS code, census tract, distance in miles from centroids to the nearest polling place location in 2012, and distance in miles from centroids to the nearest polling place location in 2016, total population, median household income, and a myriad of race/ethnicity population variables for each block group as well. Having completed this process, I had four files that had centroids, their distance to nearest polling place locations, and their accompanying census data variables.

The next step to conducting my distance analysis was to add a new columns to each of the four merged datasets, which included change in distance to nearest polling place location in miles from 2012 to 2016 for each centroid, percent of White population, percent of Black population, and percent of Latino population in each block group based on total population. This was manually conducted using Microsoft Excel. Change in distance was calculated by subtracting the distance to nearest polling place location in miles for 2016 from the distance to nearest polling place location in miles for 2012. The percent of White, Black, and Latino populations in each block group were calculated by dividing the total population of each race by the total population, then multiplying by 100, respectively.

Lastly, using R Studio, I loaded the updated excel datasets and converted them into data frames and mutated the data based on percentage of racial makeup. The code I ran checked each column I created with racial percentage for block groups and categorized each observation into five categories, each race getting five unique categories. If a block group was less than 10% White, then it would categorize it with a binary 1 for yes or 0 for no in a new column, if a block group was 10-25% White, then it would categorize it with a binary 1 for yes or 0 for no in a new column, if a block group was 26-50% White, then it would categorize it with a binary 1 for yes or 0 for no in a new column, if a block group was 51-75% White, then it would categorize it with

a binary 1 for yes or 0 for no in a new column, and if a block group was more than 75% White, then it would categorize it with a binary 1 for yes or 0 for no in a new column. This added five new binary columns to the dataset pertaining to White population makeup based on block groups. The same process was performed for both Latino and Black populations, which added another 10 binary columns to the datasets. Thereafter, I found the average change in distance in miles to polling place locations from 2012 to 2016 for all races based on their newly created binary percentage makeup categories. This was done for all four datasets pertaining to each of the four states. From here, I was able to create tables to do an analysis on average change in distance in miles to polling place locations from 2012 to 2016 for each all races in Louisiana, Mississippi, South Carolina, and Virginia.

4 Results

State Strictness Levels and Voter ID Laws by State Analysis

Table 2: Model 1 details that after running a logistic regression with voter turnout as the response variable and State Strictness Levels and Ethnicity as the predictor variables, there is a significance in state strictness level on voter turnout as well as the interaction between state strictness level and ethnicity. With p-values of 0.001 and 0.04, which is less than alpha of 0.05, at least one state strictness level and the interaction between a state strictness level of 2 and being Latino seem to be significant predictors for voter turnout. This means that a state being Non-strict has a significant effect on voter turnout as well as the interaction between a state being Somewhat Strict (strictness level 2) and a voter being Latino. Surprisingly enough, the interaction between a state being Strict (strictness level 3) and a voter being Latino was not statistically significant. Additionally, being Black nor its interaction with any state strictness level was not statistically significant.

Table 2: Model 1

Voter Turnout ~ State Strictness Level * Ethnicity

Predictors	*CI*	*p-value*
Strictness Level 1	10.71 – 17.48	**<0.001**
Strictness Level 2	0.88 – 2.50	0.165
Strictness Level 3	0.38 – 1.65	0.428
Black or African American	0.60 – 1.20	0.352
Hispanic or Latino	0.63 – 1.24	0.462
White Non-Hispanic	0.67 – 1.86	0.724
Strictness Level 2 * Black or African American	0.30 – 1.07	0.090
Strictness Level 3 * Black or African American	0.49 – 2.63	0.691
Strictness Level 2 * Hispanic or Latino	0.27 – 0.96	**0.040**
Strictness Level 3 * Hispanic or Latino	0.33 – 2.12	0.742
Strictness Level 2 * White Non-Hispanic	0.51 – 3.69	0.568
Strictness Level 3 * White Non-Hispanic	1.00 – 18.99	0.064
Observations	5986	
R^2	0.005	

~ : means predicted by
* : means interaction between variables

Looking at *Figure 2*, which depicts the overall effect state strictness level and its interaction with race/ethnicity had on voter turnout, it becomes clear how the interaction between a state being Somewhat Strict and being Latino affects voter turnout. Being Latino and having a state strictness level of Somewhat Strict negatively affects voter turnout, meaning that when a state strictness level increases from Non-Strict to Somewhat Strict, Latinos are less likely to turnout compared to White or Black voters. Although the model deems it not a significant

predictor for voter turnout, looking at the table it seems as though the interaction between state strictness level of 3 (Strict) and being White is significant. The table shows that the stricter the level is, the more likely it is for White voters to turn out and vote. However, the results conclude that this was ultimately not a statistically significant predictor. Black voters seemed to vote or not vote regardless of state strictness level. The negative effects on Latino turnout may have been aggravated by increased voter ID laws and increase of state ID law strictness levels that came as a result of *Shelby County v. Holder* reducing voter protection against discriminatory voter laws.

Figure 2: Ethnic Vote Status Makeup by State Strictness Level

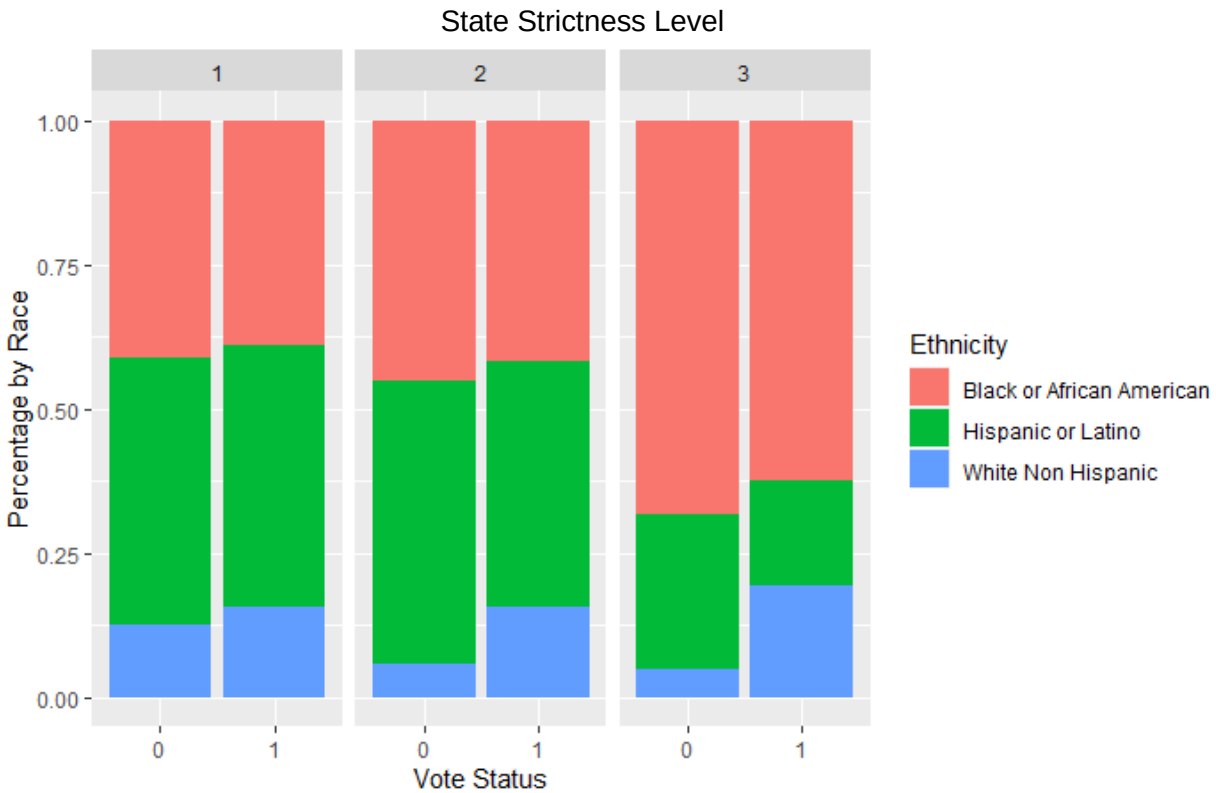

Table 3: Model 2 indicates that there is no significant association between a state having any proposed voter identification laws in the previous decade, so, if there are ten or two hundred laws proposed laws in one state does not make a significant difference in voter turnout. The table

also shows that there is no significant association between there being a standing photo identification requirement and voter turnout. The same applies to the association between there being a general identification requirement in the state and voter turnout.

Table 3: Model 2

Voter Turnout ~ Photo ID Requirement * Ethnicity + ID Requirement * Ethnicity + Total Bills Proposed * Ethnicity

Predictors	*CI*	*p-value*
Photo ID Requirement (Yes)	8.95 – 19.37	**<0.001**
Photo ID Requirement (No)	0.78 – 1.91	0.347
Hispanic of Latino	0.68 – 2.26	0.479
White Non-Hispanic	0.32 – 2.13	0.682
ID requirement	0.43 – 1.17	0.167
Total Bills Proposed	0.99 – 1.00	0.282
Photo ID Requirement * Hispanic of Latino	0.31 – 1.37	0.280
Photo ID Requirement * White Non-Hispanic	0.28 – 2.94	0.916
ID Requirement * Hispanic or Latino	0.49 – 2.45	0.851
ID Requirement * White Non-Hispanic	0.86 – 8.97	0.099
Total Bills Proposed * Hispanic or Latino	0.98 – 1.01	0.425
Total Bills Proposed * White Non-Hispanic	0.99 – 1.05	0.212
Observations	4489	
R^2	0.006	

~ : means predicted by
+ : means one additional predictor and/or predictor interaction
* : means interaction between variables

Distance to Polling Place Locations Analysis

The following Tables illustrate the mean distance change in miles to polling place locations from the nearest centroid from 2012 to 2016 based on racial/ethnic block groups. The mean distance change in miles for all ethnic groups in a block group were conducted after aggregating block groups together based on the percentage makeup of the block group by race. They were then placed into five categories based on the racial percentage makeup of the block group. For instance, if there were less than 10% White residents in the group, they were categorized in the first group "less than 10% population makeup", if there were about 10% to 24.99% White residents in the group, they were categorized in the second interval "ten to twenty-nine percent population makeup", and so on for each ethnic group.

Table 4 focuses on overall between group differences of block group racial makeup and show the increase or decrease in miles to polling place locations in the state of Louisiana. The output shows that when block groups are less than 10% White makeup, distance increases the most by about 0.4 miles. This follows suit with my expectations which hypothesized that there would be larger increases in distance to polling places when block groups were less White and smaller increases or even decreases in distance to polling place locations when block groups were mainly White. Interestingly, the largest decrease in distance happens when block groups have a 25-49.99% Latino population makeup. However, as Louisiana has a small Latino population overall and lacked block groups with over 50% Latino makeup, there lacks information to see if this changes when there are more Latinos in a block group.

Table 4: Average Change in Distance (in Miles): 2012 to 2016 - LA					
Louisiana					
White Population Makeup in Block Group	Change for All Groups in Block	Black Population Makeup in Block Group	Change for All Groups in Block	Latino Population Makeup in Block Group	Change for All Groups in Block
< 10%	**0.400**	< 10%	0.117	< 10%	0.033
10 - 24.99%	-0.009	10 - 24.99%	-0.02	10 - 24.99%	0.007
25 - 49.99%	-0.018	25 - 49.99%	-0.024	25 - 49.99%	-0.083
50 - 74.99%	-0.016	50 - 74.99%	-0.017	50 - 74.99%	NA
> 75%	-0.017	> 75%	**0.002**	> 75%	NA

Table 5 focuses on overall between group differences of block group racial makeup and shows the increase or decrease in miles to polling place locations in the state of Mississippi. Based on the output, when block groups have White population of about 10-24.99%, average distance to nearest polling place for all races/ethnicities increases the most over any other by about 17.94 miles. Accordingly, when population makeup is 75% or more Black, average distance to polling place location for all races increases significantly more compared to when block group makeup is 75% or more White. When block group population makeup is less than 10% Black, there appears to be the smallest average increase to polling place location for all races. Interestingly, when population makeup is 10-24.99% or 25-49.99% Latino, average distance to polling place location increases the least compared to when block groups are 10-24.99% or 25-49.99% Black or White. Same as Louisiana, Mississippi has a small Latino population overall and lacked block groups with over 50% Latino makeup, so there lacks information to see if this changes when there are more Latinos in a block group. Mississippi does

appear to be an odd case compared to the other three states as regardless of block group population makeup by race, every block group has an increase to polling place location. Moreover, the increases are substantial with 11-17 average mile increase compared to the 0-0.3 average mile increases in the other states. This could be due to more rural areas in the state of a miscalculation of geographical matches between geocoded polling place locations and block group centroids provided by the U.S. Census Bureau.

Table 5: Average Change in Distance (in Miles) 2012 to 2016 - MS

Mississippi					
White Population Makeup in Block Group	Change for All Groups in Block	Black Population Makeup in Block Group	Change for All Groups in Block	Latino Population Makeup in Block Group	Change for All Groups in Block
< 10%	12.393	< 10%	**11.398**	< 10%	13.616
10 - 24.99%	**17.940**	10 - 24.99%	13.394	10 - 24.99%	12.347
25 - 49.99%	13.959	25 - 49.99%	13.849	25 - 49.99%	12.113
50 - 74.99%	12.954	50 - 74.99%	13.680	50 - 74.99%	NA
> 75%	12.580	> 75%	**15.853**	> 75%	NA

Table 6 focuses on overall between group differences of block group racial makeup and show the increase or decrease in miles to polling place locations in the state of South Carolina. Interestingly, the largest increase in average distance to polling places from 2012 to 2016 was in block groups with White population makeup of about 50-74.99% and Black population makeup of about 10-24.99% or 25.49.99%. The largest distance increase does seem to be in block groups which are majority White, however, there is still a substantial increase in distance to polling places for all races when the population makeup of block groups is less than 10% White. The

largest decrease was in block groups with White population makeup of about 10-24.99% and Black population makeup of 75% or more by 0.04 and 0.03 miles in average, respectively. For Latino groups, distance to polling place locations decreased consistently regardless of Latino population makeup in block groups.

Table 6: Average Change in Distance (in Miles): 2012 to 2016 - SC

South Carolina					
White Population Makeup in Block Group	Change for All Groups in Block	Black Population Makeup in Block Group	Change for All Groups in Block	Latino Population Makeup in Block Group	Change for All Groups in Block
< 10%	**0.003**	< 10%	-0.023	< 10%	-0.006
10 - 24.99%	-0.038	10 - 24.99%	**0.017**	10 - 24.99%	-0.008
25 - 49.99%	-0.020	25 - 49.99%	**0.006**	25 - 49.99%	-0.010
50 - 74.99%	**0.028**	50 - 74.99%	-0.019	50 - 74.99%	0.000
> 75%	-0.022	> 75%	**-0.026**	> 75%	NA

Table 7 focuses on overall between group differences of block group racial makeup and show the increase or decrease in miles to polling place locations in the state of Virginia. Overall, it seems as though distance to polling place locations increased the most on average for block groups that were over 75% Latino from 2012 to 2016 by about 0.26 miles. There was also an increase in distance when White population was more than 75% of the makeup in blocks, but it was not as significant as average distance increase to polling place locations for Latino majority block groups. Although there was an increase for Black groups in most cases, there was an apparent decrease in average distance to polling place locations when block groups were

populated 50-74.99% Black, which is interesting seeing as all other block group makeups for Black groups increased in distance rather than decreased as seen in the 50-74.99% group.

Table 7: Average Change in Distance (in Miles): 2012 to 2016 - VA					
Virginia					
White Population Makeup in Block Group	Change for All Groups in Block	Black Population Makeup in Block Group	Change for All Groups in Block	Latino Population Makeup in Block Group	Change for All Groups in Block
< 10%	0.037	< 10%	0.071	< 10%	0.055
10 - 24.99%	0.042	10 - 24.99%	0.061	10 - 24.99%	0.047
25 - 49.99%	-0.027	25 - 49.99%	0.058	25 - 49.99%	0.006
50 - 74.99%	0.045	50 - 74.99%	**-0.181**	50 - 74.99%	0.031
> 75%	**0.097**	> 75%	0.026	> 75%	**0.259**

5 Conclusion

Minority votes have become ever more crucial regarding representation in presidential elections. Yet, minority voters turn out at lower rates than their White counterparts, why? This study aimed to add clarity to the paradox behind the disproportion in turnout by minority races in presidential elections, given that the U.S. is becoming more diverse in its make-up. Following the 2013 *Shelby County v. Holder* U.S. Supreme Court decision which overturned two provisions of the Voting Rights Act of 1965: Section 5, this study sought to connect the effects of ballot box access, defined as distance to polling places and identification law strictness, on minority voter turnout.

My results demonstrate that there have been several increases in average distance to polling place locations in all four of the former VRA states of Louisiana, Mississippi, South Carolina, and Virginia from 2012 to 2016. Most importantly, major increases have occurred for block groups heavily populated with Latino and Black constituents as opposed to places with higher rates of White people. Following suit of Cantoni's (2020) work which found that the effects of a 0.245-mile increase in distance to polling places reduces turnout by about 1-3 percent, it can be inferred that these increases in distance negatively target minority voter turnout. There are some discrepancies between racial population makeup and increase in average distance to polling place locations, however, the overall trend prevails that Latino and Black populations suffer more from these changes in distance than White populations do. Could this suggest that after the *Shelby County v. Holder*, states found it possible to target minority voters by increasing their average distance to polling place locations as they are no longer protected by Section 5 of the VRA? Potentially, but further research into the subject is required.

Subsequently, it appears as though the state strictness level of voter identification laws also poses a deterrent more so for minority voters than it does for White voters. Specifically, when state voter identification laws are somewhat strict, there exists a strong association between the level of strictness and Latino turnout. Latinos will turnout at lower rates than Black and White voters when state voter identification laws are somewhat strict. However, there does not appear to be a significant effect on voter turnout when a voter's race/ethnicity is Latino, and states have either non-strict or strict voter identification laws. My findings indicate that there is no significant association between being White or Black and any state voter identification strictness level. Moreover, results show that states having proposed voter identification laws in

the previous decade, standing photo identification requirement or general identification requirement do not affect voter turnout.

I recognize four limitations to my analysis. First, the 2016 Collaborative Multiracial Post-Election Survey is oriented towards being able to study a myriad of variables between races, but not towards running state level analyses. Having a potentially larger dataset with a large sum of correspondents from all states is important for a more accurate analysis of voter identification law effects on minority voter turnout. Second, there being a deficiency in up-to-date databases which specifically look into voter identification laws passed in congruence with voter files restricts the reach of this study to small datasets provided by other research teams. Third, lacking voter files with specific addresses rather than just state or zip code information, I had to use U.S. census centroids as my point of reference for my distance analysis. Having voter files with racial/ethnic variables as well as addresses would make create a more accurate distance analysis. Fourth, there being potential repetitions or missing data in some state polling place location datasets may have influenced the average change in distance to polling place locations, as can be seen with the extreme distance changes in Mississippi from 2012 to 2016.

It is important to address these issues for future research to have a more accurate analysis of the effects of state voter identification law strictness on voter turnout as well as the effect of changes in distance to polling places on minority voter turnout.

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